

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Noa Street-Sachs	Team: Squad #8	CCRB Case #: 201908805	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/11/2019 7:00 PM	Location of Incident: 40th Precinct Stationhouse	Precinct: 40	18 Mo. SOL 3/11/2021	EO SOL 10/26/2021	
Date/Time CV Reported Mon, 09/30/2019 3:29 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/08/2019 11:04 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Johnanthon Alexander	21932	927841	040 PCT
2. POM Elbi Martines	22951	962583	040 PCT
3. POM Salvador Cornejocastillo	09217	966002	040 PCT
4. DTS Christophe Villanueva	02109	949947	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stephen Oswald	01696	961985	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Johnanthon Alexander	Abuse: Police Officer Johnanthon Alexander threatened to arrest § 87(2)(b)	
B.POM Elbi Martines	Abuse: Police Officer Elbi Martines threatened to arrest § 87(2)(b)	
C.POM Elbi Martines	Force: Police Officer Elbi Martines used physical force against § 87(2)(b)	
D.DTS Christophe Villanueva	Force: Detective Christophe Villanueva used physical force against § 87(2)(b)	
E.POM Elbi Martines	Discourtesy: Police Officer Elbi Martines spoke discourteously to § 87(2)(b)	
F.POM Salvador Cornejocastillo	Discourtesy: Police Officer Salvador Cornejocastillo spoke discourteously to § 87(2)(b)	

Case Summary

On September 30, 2019, § 87(2)(b) filed this complaint with IAB over the phone, generating original log number § 87(2)(b). The CCRB received this complaint on October 8, 2019.

On September 11, 2019, at approximately 7 p.m., § 87(2)(b) entered the 40th Precinct stationhouse in the Bronx to inquire about his brother's arrest. The arresting officer, PO Salvador Cornejocastillo of the 40th Precinct, allegedly told § 87(2)(b) to wait by the gated area of the stationhouse while he completed the paperwork to void the arrest. Approximately 15-20 minutes later, PO Johnanthony Alexander of the 40th Precinct approached § 87(2)(b) and asked why § 87(2)(b) was waiting at the stationhouse. When PO Alexander discovered that § 87(2)(b) brother was an adult, PO Alexander told § 87(2)(b) he did not need to wait there. § 87(2)(b) was told to leave the stationhouse multiple times. § 87(2)(b) refused to leave the stationhouse voluntarily. PO Elbi Martines of the 40th Precinct and PO Alexander allegedly told § 87(2)(b) he was acting disorderly and could be arrested for trespass (**Allegation A and B: Abuse of Authority**, § 87(2)(g)).

Several officers, including PO Martines and Det. Christopher Villanueva of the 40th Precinct, escorted § 87(2)(b) out of the stationhouse by grabbing him by the arms (**Allegation C and D: Force**, § 87(2)(g)). § 87(2)(b) then stood outside the stationhouse and interacted with officers. PO Martines, PO Cornejocastillo, and other unidentified officers, used profanity with § 87(2)(b) (**Allegation E and F: Discourtesy**, § 87(2)(g)).

§ 87(2)(b) was not arrested or summonsed as a result of this incident. The investigation obtained body-worn camera footage (Board Review 08) and stationhouse surveillance footage pertaining to this incident (Board Review 09).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Johnanthony Alexander threatened to arrest § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Elbi Martines threatened to arrest § 87(2)(b)

Allegation (C) Force: Police Officer Elbi Martines used physical force against § 87(2)(b)

Allegation (D) Force: Detective Christopher Villanueva used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) was asked to leave the 40th Precinct stationhouse and refused to do so during this incident. It is also undisputed that § 87(2)(b) was ejected from the stationhouse.

In § 87(2)(b) sworn statement, he stated that he was at the stationhouse to inquire about his brother's arrest. § 87(2)(b) was informed by the arresting officer that the arrest would be voided and told to wait at the stationhouse while the arrest paperwork was completed. After 15-20 minutes, PO Alexander approached § 87(2)(b) and asked what he was doing. After asking how old § 87(2)(b) brother was, PO Alexander informed § 87(2)(b) he did not need to wait at the stationhouse. PO Alexander told § 87(2)(b) to leave four to five times. PO Alexander did not provide an explanation for why § 87(2)(b) could not wait there. After telling § 87(2)(b) to leave, PO Alexander shoved § 87(2)(b) twice, making contact with his upper left arm. Approximately four additional officers arrived and removed § 87(2)(b) from the stationhouse. § 87(2)(b) could not remember the specific actions that the officers took but stated that each officer grabbed a part of his arms, chest, and waist. § 87(2)(b) feet did not leave the ground, nor did any other parts of his body make contact with the

ground (Board Review 01).

PO Martines testified that before § 87(2)(b) entered the stationhouse, PO Martines asked § 87(2)(b) twice if he could help him, to which § 87(2)(b) did not respond. § 87(2)(b) appeared upset, his demeanor was aggressive, and his voice was raised. Once inside the stationhouse, § 87(2)(b) was speaking very loudly, as if to attract attention, cursing, and being “verbally abusive.” PO Martines initially stated that § 87(2)(b) skipped one or two other civilians but later stated he did not know how many others were present. PO Martines attempted to speak with § 87(2)(b) and asked him to come by the door so that PO Martines could help him. § 87(2)(b) did not cooperate and continued to be loud and verbally aggressive. PO Martines informed § 87(2)(b) that based on the way he was acting, he would not receive help. PO Alexander, who was the assistant desk officer, was speaking with § 87(2)(b) and told § 87(2)(b) he had to wait because people were in front of him.

PO Martines volunteered during his CCRB interview that PO Alexander told § 87(2)(b) “You either need to calm down, or you need to leave because you’re acting disorderly and if you refuse to leave, you could potentially get arrested for trespass because we told you multiple times you can’t be acting disorderly in the precinct.” PO Martines stated that both he and PO Alexander were telling this to § 87(2)(b). When asked for clarification if PO Martines mentioned an arrest to § 87(2)(b), PO Martines said that when he later spoke with § 87(2)(b) outside the stationhouse, § 87(2)(b) was so upset and eager to go back inside the stationhouse that PO Martines told § 87(2)(b) if he went back inside, he would definitely be arrested for trespass and at a minimum, disorderly conduct because § 87(2)(b) had been removed already. § 87(2)(b) behavior constituted trespassing and disorderly conduct because he was cursing at everybody and being loud. Additionally, § 87(2)(b) had been guided out and had “squared up” to PO Alexander.

PO Martines testified that he was one of approximately four to five officers who helped grab § 87(2)(b) by his upper arm in order to remove him from the stationhouse. He later stated that he did not know if he made physical contact with § 87(2)(b) but knew that he helped in removing him. PO Martines believed the officers had to lift § 87(2)(b) to remove him, but that § 87(2)(b) remained vertical (Board Review 02).

PO Alexander testified that he asked § 87(2)(b) to leave two to four times. He did not mention telling § 87(2)(b) he could be arrested in his original testimony. Upon being interviewed a second time for this case, PO Alexander denied telling § 87(2)(b) he could be arrested at any point during their encounter, although he stated that § 87(2)(b) could have been arrested for disorderly conduct for refusing to leave the stationhouse. Two or three officers escorted § 87(2)(b) who was resistant, out of the stationhouse by grabbing his arms. PO Alexander did not make contact with § 87(2)(b) (Board Review 03, Board Review 04).

PO Oswald testified that § 87(2)(b) refused to leave the stationhouse. PO Oswald denied that the subject of § 87(2)(b) being arrested came up during the incident and denied that § 87(2)(b) could have been arrested for anything. PO Oswald stated that § 87(2)(b) refused to leave the stationhouse and was escorted out. PO Oswald denied making any physical contact with § 87(2)(b) (Board Review 05).

Det. Villanueva also testified that § 87(2)(b) refused to leave the stationhouse, but did not remember if he or any other officers made any statements to § 87(2)(b) regarding an arrest. Det. Villanueva walked into the stationhouse and was instructed to escort § 87(2)(b) out. § 87(2)(b) refused to be escorted out voluntarily. Det. Villanueva could not remember if he made physical contact with § 87(2)(b) or how § 87(2)(b) was escorted out (Board Review 06).

PO Cornejocastillo testified that he explained the arrest process to § 87(2)(b) and told him he would keep him updated. Because § 87(2)(b) brother was not a minor, § 87(2)(b) had no reason to be at the stationhouse. PO Cornejocastillo denied instructing § 87(2)(b) to wait at the stationhouse and denied instructing § 87(2)(b) to leave. While PO Cornejocastillo consulted with a supervisor about how to proceed with the arrest processing, another officer approached PO Cornejocastillo and informed him that § 87(2)(b) was ejected from the stationhouse. PO Cornejocastillo denied making physical contact with § 87(2)(b) or witnessing other officers make physical contact with him. When PO Cornejocastillo spoke to § 87(2)(b) while outside the stationhouse, § 87(2)(b) stated that officers had told him to leave and that he did not want to (Board Review 07).

The investigation obtained PO Martinez's BWC pertaining to this incident. The threat of arrest was not depicted on this footage. The footage depicts officers making contact with § 87(2)(b) body, but the number of the officers in the frame obscures the specific actions that the officers take. Det. Villanueva and PO Martinez are depicted engaging with § 87(2)(b) at the time at which § 87(2)(b) was escorted out. § 87(2)(g)

The 40th Precinct stationhouse footage depicted a group of approximately four officers exiting the stationhouse. Two of the officers, both of which appear to be white males, place their hand on § 87(2)(b) back. (Board Review 09).

Per N.Y. Penal Law 140.00 and 140.10, a person who remains in an area open to the public does so lawfully unless he defies a lawful order to leave, personally communicated to him by the owner of such premises or other authorized person (Board Review 10). A person is guilty of criminal trespass in the third degree when he knowingly enters or remains unlawfully in the building. Criminal trespass in the third degree is a class B misdemeanor (Board Review 11).

In People v. Reape, 22 Misc. 3d 615, the Criminal Court of New York, Kings County held that a police officer's order to leave a precinct stationhouse suffices to revoke a civilian's license to remain in the stationhouse. A civilian refusing to leave the property when asked to do so fulfilled the definition of remaining unlawfully in or upon premises (Board Review 12).

Patrol Guide Procedure 221-01 and 221-02 allow officers to use a reasonable degree of force to ensure the safety of a member of service or when a civilian is refusing to comply with a lawful order (Board Review 13, Board Review 14).

§ 87(2)(g)

§ 87(2)(g)

Allegation (E) Discourtesy: Police Officer Elbi Martines spoke discourteously to § 87(2)(b)

Allegation (F) Discourtesy: Police Officer Salvador Cornejocastillo spoke discourteously to

§ 87(2)(b)

Although § 87(2)(b) did not allege that officers used profanity while engaging with him during his sworn statement (Board Review 01), PO Martines' BWC (Board Review 08) captured four instances of officers using profanity while interacting with him outside the stationhouse.

In the first instance, at 00:42 seconds, a male voice makes the following statements: "Yo what the fuck's going on, man?", "What the fuck?", "Why are you fucking it up?", "They didn't kick you out for no fucking reason.", "No he fucking didn't."

In the second instance, at 1:18 minutes, a male voice makes the following statements: "What the fuck, bro? They're not going to kick you out for no fucking reason. I'm trying to fucking help you, my man. You're fucking it up."

In the third instance, at 1:35 minutes, a male voice which seems to belong to the individual wearing the BWC, identified as PO Martines, states, "If you'd listened to me, none of this shit would have happened. And you was gonna get your way. But you had to listen to me. You escalated this shit..."

In the fourth instance, at 2:52 minutes, a male officer who the investigation determined to be PO Cornejocastillo because he can be seen immediately prior walking toward the screen, states, "I told you I was gonna fucking handle it. I didn't tell you to fucking wait. I told you I was gonna handle it, alright?" (Board Review 08)

PO Martines identified his own voice as making the statements listed in the third instance of profanity discussed above. PO Martines stated that at this point, § 87(2)(b) was explaining he was a former MOS, so PO Martines was trying to give him courtesy by speaking to him "person-to-person." PO Martines identified the voice using profanity in the fourth instance discussed above as belonging to the officer walking across the street captured on the screen at 2:31 minutes who the investigation determined to be PO Cornejocastillo. PO Martines could not identify the voices using profanity in the first and second instance discussed above (Board Review 02).

PO Cornejocastillo testified that he could not recall if officers used profanity with § 87(2)(b). PO Cornejocastillo also could not recall who made the statements in the first two instances discussed above. PO Cornejocastillo could not identify the voice making the statements in the third and fourth instances of profanity discussed above. PO Cornejocastillo identified himself as the officer on the screen of PO Martines' BWC at 2:32 minutes (Board Review 08, Board Review 07).

PO Alexander, PO Oswald, and Detective Villanueva all testified that they could not identify any of the voices using profanity in the four instances discussed above (Board Review 03, 05, and 06).

In DAO-DCT case number: 2017-17276, the trial commissioner held that in a violent and stressful street encounter, "language which would ordinarily be inappropriate in dealing with civilians may be excused" (Board Review 16).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).
- Det. Villanueva has been a member of service for eight years and has been a subject in nine CCRB complaints and nineteen allegations, none of which were substantiated (Board Review 18). § 87(2)(g)
- PO Alexander has been a member of service for 18 years and has been a subject in five CCRB complaints and six allegations, none of which were substantiated (Board Review 19). § 87(2)(g)
- PO Cornejocastillo has been a member of service for one year and this is the first CCRB complaint to which he has been a subject (Board Review 20).
- PO Martines has been a member of service for three years and this is the first CCRB complaint to which he has been a subject (Board Review 21).

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of December 12, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 22).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 8

Investigator: Noa Street-Sachs Inv. Noa-Street Sachs 4/14/2020
Signature Print Title & Name Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo 4/14/2020
Signature Print Title & Name Date

Reviewer: _____

CCRB Case # 201908805

Signature

Print Title & Name

Date